

3.

CASE #	CASE NAME	HEARING NAME
CVME2604269	MIDLAND CREDIT MANAGEMENT INC. VS ALDAMA	MOTION TO COMPEL ARBITRATION BY RONALD ALDAMA

Tentative Ruling:

Moving party: Defendant Ronald Aldama

Motion filed by Plaintiff: June 6, 2026

Opposition: None

CCP §1281 requires a trial court to grant a petition to compel arbitration “if [the court] determines that an agreement to arbitrate the controversy exists.” (CCP §1281.2.) “A petition to compel arbitration “is in essence a suit in equity to compel specific performance of a contract.”” (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 411 (“*Rosenthal*”) quoting *Spear v. California State Auto. Assn.* (1992) 2 Cal. 4th 1035, 1040.) “[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement . . . that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense.” (*Rosenthal, supra*, 14 Cal.4th at p. 413.) “In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972 citing *Rosenthal, supra*, 14 Cal.4th at p. 413.)

Here, the court considered that the parties specifically agreed by contract that “[a]rbitration may be requested any time, even where there is a pending lawsuit, unless a trial has begun or a final judgment entered. Neither you nor we waive the right to arbitrate by filing or serving a complaint, answer, counterclaim, motion, or discovery in a court lawsuit. To choose arbitration, a party may file a motion to compel arbitration in a pending matter and/or commence arbitration by submitting the required AAA forms and requisite filing fees to the AAA.” The Court **GRANTS** the motion to compel Midland Credit Management to arbitrate its claims. Plaintiff must initiate the arbitration proceedings with AAA, including paying any of the related filing fees required, within 30 days of this court’s order. Just as the contract provides that Defendant can move for arbitration at any time, it also provides that since this action is for the collection of a debt, Defendant is responsible to pay his share of the filing fees.

In addition, the court stays these proceedings pending Defendant’s timely election to pursue arbitration of this dispute pursuant to the terms of this court’s order.

The Court will set a status review hearing re: status of Arbitration on December 1, 2026 at 8:00 a.m. in Dept. M205, Remote appearance is allowed.